

Andhra Pradesh Abolition of the Posts of Village Assistants Act, 1991

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State of Andhra Pradesh - Act

Andhra Pradesh Abolition of the Posts of Village Assistants Act, 1991

ANDHRA PRADESH

India

Andhra Pradesh Abolition of the Posts of Village Assistants Act, 1991

Act 9 of 1991

Published on 9 April 1991

Not commenced

[This is the version of this document from 9 April 1991.]

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The Andhra Pradesh Abolition of the Posts of Village Assistants Act, 1991 received the assent of the Governor on the 9th April, 1991. The said Act in force in the combined State, as on 02.06.2014, has been adapted to the State of Telangana, under section 101 of the Andhra Pradesh Reorganisation Act, 2014 (Central Act 6 of 2014) vide. the Telangana Adaptation of Laws Order, 2016, issued in G.O.Ms.No.45, Law (F) Department, dated 01.06.2016.

1.

Short title and commencement. -

(1)

This Act may be called the [Telangana] Abolition of the Posts of Village Assistants Act, 1991.

(2)

It shall be deemed to have come into force on the 5th November, 1990.

2.

Definitions. -

In this Act unless the context otherwise requires,-

(a)

"Government" means the State Government of [Telangana];

(b)

"Prescribed" means prescribed by rules made by the Government under this Act;

(c)

"Village Assistant" means an officer appointed under sub-section (1) of section 4 of the Andhra Pradesh Abolition of Posts of Part-time Village Officers Act, 1985 (Act 8 of 1985).

3.

Repeal of Act 8 of 1985. -

(1)

The Andhra Pradesh Abolition of Posts of Part-time Village Officers Act, 1985 is hereby repealed.

(2)

Upon such repeal, the provisions of section 8 of the [Telangana General Clauses Act, 1891 (Act 1 of 1891)] shall apply.

4.

Abolition of the posts of Village Assistants. -

The Posts of Village Assistants in the State of Andhra Pradesh are hereby abolished. Every person who holds the post of Village Assistant in any part of the State of Andhra Pradesh shall forth-with cease to hold such post.

5.

Interim Arrangements. -

(1)

The Government shall create such number of supernumerary posts of Junior Assistants as are required to accommodate all the Village Assistants whose posts are abolished under section 4 until they are absorbed in equivalent posts.

(2)

The Government shall evolve a Scheme to absorb the Village Assistants whose posts are abolished under section 4, in the category of Junior Assistants in any State Government service by making such suitable provision as may be necessary under the proviso to article 309 of the Constitution of India.

(3)

The Junior Assistants continuing in the supernumerary posts created under sub-section (1) shall discharge such duties as are assigned to them by the District Collector until they are absorbed under sub-section (2).

6.

Power to remove difficulties. -

(1)

If any difficulty arises in giving effect to the provisions of this Act, the Government may make such order not inconsistent with the provisions of this Act as may appear to them to be necessary or expedient for the purpose of removing the difficulty:

Provided that no such order shall be made after the expiration of two years from the date of commencement of this Act.

(2)

Every order made under this section shall, as soon as may be after it is made, be laid before the Legislature of the State.

7.

Power to make Rules. -

(1)

The Government may, by notification in the [Telangana Gazette], make rules to carry out all or any of the purposes of this Act.

(2)

Every rule made under this Act shall, immediately after it is made, be laid before the Legislature of the State if it is in session and if it is not in session, in the session immediately following for a total period of fourteen days which may be comprised in one session or in two successive sessions, and if, before the expiration, of the session in which it is so laid

or the session immediately following, the Legislature agrees in making any modification in the rule or in the annulment of the rule, the rule shall, from the date on which the modification or annulment is notified in the [Telangana Gazette], have effect only in such modified form or shall stand annulled, as the case may be, so however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that rule.

8.

Repeal of ordinance 7 of 1990. -

The Andhra Pradesh Abolition of the Posts of Village Assistants Ordinance, 1990 is hereby repealed.

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